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Guarantee Deed

This Guarantee Deed made this 17th day of Aug 20 22 is given by

MR HARASAN RAM, S/O MR JAGRUPA RAM S/O JAGRUPA RAM KARWARA, RANIWARA DIST.-JALORE KARWADA JALOR - 343040

(hereinafter referred to as the "Guarantor/s" which expression shall, unless repugnant to the context or meaning thereof mean and include his/her heirs, representatives in interest, executors, administrators and assigns) in favour of SUNDARAM FINANCE LIMITED, a company incorporated under the Indian Companies Act, 1913, and having its registered office at 21 Patullos Road, Chennai – 600 002 (hereinafter referred to as "the Lender" which expression shall unless repugnant to the context or, meaning thereof, mean and include its successors and assigns)

AND WHEREAS the Guarantor/s has/have requested the Lender to make available a Loan facility to

MR KISHNA RAM

(hereinafter referred to as the Borrower and has/have undertaken to guarantee the due performance and observance by the Borrower of all the terms and conditions of the Loan Agreement.AND WHEREAS relying upon the undertakings and assurances provided by the Guarantor/s hereunder and the undertakings and assurances provided by the Borrower the Lender has, under and pursuant to the Loan Agreement dated .....17/08/2022 entered into with the Borrower ("Loan Agreement") the terms and conditions which the Guarantor/s is/are fully aware, agreed to extend a Loan facility of Rs. 600000/- to the Borrower upon the terms and conditions mentioned in the Loan Agreement and this Guarantee.

NOW THIS GUARANTEE WITNESSETH AS FOLLOWS:

1. In consideration of the Lender providing to the Borrower the Loan, the Guarantor(s) hereby unconditionally and irrevocably guarantees:
   i. the payment and discharge by the Borrower of the Borrower's liabilities under the Loan Agreement, to the Lender, as per the second schedule to the Loan Agreement.
   ii. upon the happening of any of the Events of Default as contemplated under the loan agreement, the immediate payment and discharge by the Borrower of the Borrower's liabilities, without any demur or protest or objection of any nature whatsoever, the amount outstanding against the Loan extended by the Lender together with interest and all other amounts and charges payable by the Borrower or incurred by the Lender, regarding the same.
   iii. the due performance of all the terms and conditions provided under the said Loan Agreement by the Borrower.
2. The Guarantor/s hereby expressly agrees that it shall not require any proof in addition to the written demand by the Lender, made in any format, raised at the above mentioned address of the Guarantor/s or the address notified by the Guarantor/s by registered post with acknowledgement due or by post or by courier or by any other means of transmission of documents like fax message or electronic mail service or commonly used instant messaging services like WhatsApp etc. indicating the happening of an Event of Default due to which the Guarantee has been invoked. A certificate in writing signed by an officer of the Lender stating the amount due, at any particular time shall be conclusive evidence against the Guarantor/s.
3. The Guarantor/s shall make payment on first demand by the Lender without restrictions or conditions and notwithstanding any objections.by the Borrower or any other person. The Guarantor/s shall not require the Lender to justify invocation of this Guarantee and the Guarantor/s shall not have any recourse against the Lender in respect of any payments made hereunder.
4. The Guarantor/s hereby expressly agrees that this Guarantee is a continuing guarantee till all the liabilities of the Borrower under the Loan Agreement and that of the Guarantor/s hereunder are fully met. The liability of the Guarantor's is joint and several along with the liability of the Borrower.
5. The Guarantor/s expressly agree that since his liability is co-extensive with that of the Borrower, for the purposes of effectiveness of this Guarantee, the Guarantor/s are to be considered as principal debtors to the Lender for all dues payable under the provisions of this Guarantee.

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VERIFIED BY VAIBHAV KUMAR DAVE

6. The Guarantor's hereby expressly agree that they shall not be exonerated from their liability to the Lender under this Guarantee under any circumstances including without limitation, the following:

   a) by any variance made without their consent in the terms of this contract or transaction between the Lender and the Borrower

   b) by any contract made between the Lender and the Borrower by which the Borrower be released, or

   c) by any act or omission of the Lender the legal consequences of which may be discharge of the Borrower

   d) by the Lender making a compromise with, or promising to give time to or not to sue the Borrower or

   e) by the Lender losing the security.

7. The Guarantor'/s acknowledges that the Guarantor/s obligation to pay arises immediately after dispatch of written notice by the Lender by registered post with acknowledgement due or by post or by courier or by any other means of transmission of documents like fax message or electronic mail service or commonly used instant messaging services like WhatsApp etc. irrespective of whether the Borrower have been called upon or proceeded against.

8. The Guarantor's hereby agrees to keep the Lender fully indemnified against all damage, losses, costs, charges and expenses (including Attorney's fees) arising from or under or in connection with any failure of the Borrower to fulfill any of its obligations under the Loan Agreement.

9. Guarantor's hereby acknowledges and agrees that the Lender shall be entitled to invoke this Guarantee, whether it enforces its security under the Loan Agreement or not or takes any proceeding (legal or otherwise) against the Guarantor/s prior to, simultaneously or subsequent to any proceeding (legal or otherwise) filed against the Borrower or any other person or entity.

10. This Guarantee shall be interpreted in accordance with the laws of India.

11. It is acknowledged by the Guarantor's that the Lender shall be entitled to disclose any and all the information provided by them to the Lender under or along with pursuant to this Guarantee, to any credit bureau or any other person as the Lender may deem fit and the Guarantor/s hereby agrees and undertakes not to dispute or question the same in any manner whatsoever.

12. Notwithstanding anything contained in this deed, the Lender shall have a right to set- off against any monies due to the Lender from the Guarantor and to combine all accounts of the guarantor including the accounts in which the guarantor may be the Borrower/Hirer for recovery of the Lender dues under the Loan agreement and the Lender shall be entitled to withhold the termination papers in the accounts which the Guarantor may be holding with the Lender as a Borrower/Hirer till the amounts due under the Loan agreement are paid in full

13. It is hereby agreed and understood by the Guarantor that in the event of the Borrower committing default in complying with the terms and conditions of the Loan agreement, without prejudice to the right of the Lender under the Loan agreement, the Lender shall have the right to set off/adjust the amount payable by the Guarantor to the Lender under the Loan agreement against the amount at credit in the account which the Guarantor is holding with the Lender as a Borrower/Hirer.

14. The Guarantor/s agree/s that the arbitration clause provided under the loan agreement binds the guarantor(s) and the guarantor/s is/are also bound by the award passed by the arbitrator.

15. This Guarantee shall come into effect from the date mentioned hereinabove and shall terminate only upon the Borrower and/or the Guarantor making full Repayment to the Lender of the Loan, interest thereon and all other charges and dues payable by the Borrower to the Lender under the Loan Agreement and/or by the Guarantor hereunder.

16. This Guarantee is not personal to the Lender and may be assigned by the Lender in whole or in part to any person (whether absolutely or as security) by the Lender.

17. All words and expressions used in this Guarantee but not defined herein, in particular, the expressions in capital letters, shall have the meanings ascribed to them under the Loan Agreement.

IN WITNESS WHEREOF THE GUARANTOR'S HAS/HAVE SET AND SUBSCRIBED HIS/THEIR HANDS TO THESE PRESENTS THE DAY, MONTH AND YEAR HEREIN WRITTEN:

SIGNED AND DELIVERED

BY THE WITHIN NAMED GUARANTOR'S

IN THE PRESENCE OF:

WITNESS:

NAME AND ADDRESS WITNESS:- VAIBHAV KUMAR DAVE
S/O VINOD KUMAR DAVE
CHHOTI DHMANPURI
NEAR OLD WATER TANK
BHINMAL (JALORE) 343029

GUARANTOR/S

(T.I. .....OF MR/MRS. HARAJAN RAM

VERIFIED BY VAIBHAV KUMAR DAVE

सत्यमेव जयते

INDIA NON JUDICIAL

Government of Rajasthan

e-Stamp

Certificate No.	:	IN-RJ68308283974040U
Certificate Issued Date	:	16-Aug-2022 12:01 PM
Account Reference	:	NONACC (SV)/ rj3195104/ BHINMAL/ RJ-JA
Unique Doc. Reference	:	SUBIN-RJRJ3195104266565216663394U
Purchased by	:	HARASAN RAM
Description of Document	:	Article 5(d) Loan Agreement
Property Description	:	DEED OF GUARANTEE
Consideration Price (Rs.)	:	6,00,000 (Six Lakh only)
First Party	:	SUNDARAM FINANCE LTD
Second Party	:	HARASAN RAM
Stamp Duty Paid By	:	HARASAN RAM
Stamp Duty Payable (Rs.)	:	500 (Five Hundred only)
Surcharge for Infrastructure Development (Rs.)	:	50 (Fifty only)
Surcharge for Propagation and Conservation of Cow (Rs.)	:	50 (Fifty only)
Surcharge for Relief from Natural and Man-made Calamities (Rs.)	:	50 (Fifty only)
Stamp Duty Amount(Rs.)	:	650 (Six Hundred And Fifty only)

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KC 0005143812

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